

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Franco v. Padilla Construction Company 2023-01339685	<u>Plaintiff Gustavo Chavez Franco's Motion for Attorneys' Fees</u> Plaintiff Gustavo Chavez Franco moves for an award of attorneys' fees following the January 13, 2026 judgment (ROA 246) entered in this matter, in which the court awarded plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$109,940.00 in civil penalties. Plaintiff's counsel seeks an award of \$601,796.66 in attorneys' fees, based on an asserted lodestar of \$401,197.77, 640.75 claimed hours of attorney work, and a 1.50 positive multiplier. Brief (ROA 261) at 1:14-18. Plaintiff also seeks \$5,490.33 in costs, a \$5,000 "incentive award for serving as PAGA representative," and \$5,000 in administration fees "for expenses in facilitating payment to the aggrieved employees and the LWDA." For the following reasons, plaintiff's motion is granted in part and denied in part. Plaintiff alleged a single cause of action seeking civil penalties under PAGA based on a single legal claim that defendant Padilla Construction Company violated Labor Code section 226(a)(6) by failing to furnish employees with wage statements containing the inclusive dates of each pay period during the period May 19, 2022 to June 21, 2023. The court (Judge Lon Hurwitz) granted plaintiff's motion for summary adjudication on August 30, 2024, finding that Padilla's wage statements during the period May 19, 2022 to June 21, 2023 did not comply with section 226(a)(6). 8/30/24 Order (ROA 133). The parties thereafter proposed that they brief the issue of the amount of civil penalties to be imposed for Padilla's violation of section 226(a)(6), that the parties' previously filed Joint Stipulation of Undisputed Facts (filed 4/26/24, ROA 64) apply to this issue, and that following the filing of the parties' opening and reply briefs, the court hold oral argument on the penalties issue. ROA 150. On October 9, 2024 Judge Hurwitz entered an order approving the parties' proposal. ROA 156. Judge Hurwitz thereafter retired. This case was assigned to this department on March 5, 2025. ROA 182. At the July 10, 2025 initial case management conference, the court scheduled this matter for oral argument on December 11, 2025 on the penalties issue. The court heard argument on December 11, 2025, and issued its oral statement of decision that day. For the reasons set forth in its oral statement of decision, the court thereafter entered judgment in plaintiff's favor, in his representative capacity under PAGA on behalf of the LWDA and the PAGA aggrieved employees, and against defendant, in the amount of \$109,940.00, calculated based on 10,994 violative wage statements and \$10.00 per violative wage statement. The primary litigation activities in this case consisted of a demurrer, the parties' cross-motions for summary judgment, and the PAGA civil penalties bench trial. The parties also filed a handful of case management conference statements, joint status conference

statements and stipulations. As stated above, pursuant to the parties' agreement, the court decided the amount of PAGA penalties based on the parties' briefs and Joint Stipulation of Undisputed Facts, and following oral argument on the penalties issue. ROA 150.

Labor Code section 2699(k)(1) provides that "[a]ny employee who prevails in any action shall be entitled to an award of reasonable attorney's fees and costs." Here, plaintiff prevailed on his PAGA claim for an award of civil penalties against defendant.

The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. *Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th 1063, 1089; *see also K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425. When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; *see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248. The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. *See Northwest Energetic Servs., LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 841, 879-82; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154. The court is not required to impose a multiplier; the decision is discretionary. *Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.

Plaintiff seeks reimbursement for work on this case by five attorneys, four law clerks, one paralegal and one legal administrator. Attorney Ackermann states that he reduced his firm's lodestar by 20% "in an act of billing discretion," but plaintiff does not identify the time entries for which plaintiff apparently does not seek compensation, and the time records attached as Exhibit 1 to the Ackermann Declaration assert claimed fees of \$350,617.22 and 600.14 hours of work, not \$280,493.77 in fees and 480.11 hours of work. *Compare* Ackermann Decl. (ROA 262) ¶ 8 *with id.* Ex. 1.

The court has read and considered plaintiff's arguments and declarations, plaintiff's counsel's time records and other evidence, and defendant's arguments, declaration and other evidence.

The court finds the following hourly rates reasonable under the circumstances of this case: Attorney Ackermann, \$700 per hour; Attorney Kreitenberg, \$500 per hour; Attorney Hernandez, \$450 per hour; Attorney Smolyar, \$350 per hour; Attorney Gao, \$350 per hour; Legal Administrator Blackwell, \$200 per hour; Paralegal Flores, \$200 per hour; and Law Clerks, \$125 per hour. Having reviewed and considered plaintiff's and defendant's submissions, and having presided in several PAGA cases including many applications for awards of attorneys' fees, the court finds these hourly rates reasonable for attorneys in the community who conduct litigation of the same type and under similar circumstances as in this case.

Based on the court's review of plaintiff's counsel's time records, the court finds several entries that reflect duplicative and/or excessive work, and does not award fees awarded for that work. For example, plaintiff's counsel's time records reflect duplicative and excessive hours spent by multiple attorneys writing and reviewing the demurrer papers, duplicative and excessive hours spent by multiple attorneys and law clerks writing and researching the summary judgment briefs, excessive hours spent by multiple attorneys preparing short case management conference statements and joint status conference statements, and excessive hours incurred "updat[ing] file."

Applying the above hourly rates and eliminating entries for duplicative and/or excessive work, the court finds the following rates and hours reasonable under the circumstances of this case:

Attorney Ackermann	\$700 * 115	= \$80,500
Attorney Kreitenberg	\$500 * 20	= \$10,000
Attorney Hernandez	\$450 * 115	= \$51,750
Attorney Smolyar	\$350 * 2	= \$700
Attorney Gao	\$350 * 115	= \$40,250
Legal Administrator Blackwell	\$200 * 15	= \$3,000
Paralegal Flores	\$200 * 15	= \$3,000
Law Clerks	\$125 * 50	= \$6,250

Total: \$195,450

Plaintiff's request for a 1.50 positive multiplier is denied. The court does not find that any factors warrant a multiplier under these circumstances of this case. The court declines to impose either a positive or a negative multiplier.

Plaintiff is awarded \$195,450 in attorneys' fees.

Plaintiff's request for \$5,490.33 in costs is denied, as the court already addressed plaintiff's costs in a previously-issued order. See 5/7/26 Order (ROA 318).

		Plaintiff's request for a \$5,000 "incentive award for serving as PAGA representative" is denied. Plaintiff cites no legal authority authorizing an incentive award to a plaintiff following entry of judgment after trial in a PAGA case, and, in any event, the court does not find an incentive award reasonable under the circumstances of this case. Plaintiff's request for \$5,000 in administration fees "for expenses in facilitating payment to the aggrieved employees and the LWDA" is denied. Plaintiff cites no legal authority holding that a court must appoint an administrator following entry of judgment after trial in a PAGA case and/or should order a defendant to pay the costs of such an administrator. Clerk to give notice.
3	Kalo, et al. v. 1-800-BATTERY, Inc., et al. 2015-00811823	<u>Defendant Richard Keller's Motion for Summary Judgment or, in the alternative, Summary Adjudication</u> Defendant Richard Keller moves for summary judgment or, in the alternative, summary adjudication against plaintiffs Marc Youssef Lazo, Jacques Hattouni and H&L Holdings, LLC's complaint filed May 23, 2018. For the following reasons, Keller's motion is denied. A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-51. If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. <i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); <i>Aguilar</i>, 25 Cal.4th at 850-51. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends the cause of action has no merit, there is no affirmative defense to the cause of action, there is no merit to an affirmative defense as to any cause of action, there is no merit to a claim for damages, as specified in Civil Code section 3294, or that one or more defendants either owed or did not owe a duty to the plaintiff. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. <i>Id.</i> A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. <i>Choochagi v. Barracuda Networks, Inc.</i> (2020) 60 Cal.App.5th 444, 453.